

S2 Drugs And Magic Remedies Act

Title: Definition of Magic Remedy under the Drugs and Magic Remedies Act

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 2(c)

Plain English Summary:

Magic remedy मध्ये talisman, mantra, kavacha किंवा miraculous power असल्याचा दावा करणाऱ्या कोणत्याही charm चा समावेश होतो. Ayurvedic किंवा traditional product ला चमत्कारी उपचार, रोग पूर्णपणे बरा करण्याची शक्ती किंवा शरीरावर miraculous effect असल्याचा दावा करून advertise करणे या definition अंतर्गत येऊ शकते.

The Exact Legal Text:

“magic remedy” includes a talisman, mantra, kavacha, and any other charm of any kind which is alleged to possess miraculous powers for or in the diagnosis, cure, mitigation, treatment or prevention of any disease in human beings or animals or for affecting or influencing in any way the structure or any organic function of the body of human beings or animals;

Keywords/Triggers:

magic remedy, miraculous cure, talisman, mantra, kavacha, traditional remedy claim, miraculous power, DMROA Section 2(c)

Title: Prohibition of Advertisement of Certain Drugs for Treatment of Certain Diseases and Disorders

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 3

Plain English Summary:

कोणत्याही drug ची अशी advertisement करता येत नाही ज्यामुळे miscarriage, conception prevention, sexual pleasure capacity, menstrual disorder किंवा Schedule मध्ये दिलेल्या diseases च्या diagnosis, cure, treatment किंवा prevention साठी त्या drug चा वापर करण्यास प्रोत्साहन मिळते. Ayurvedic startup ने अशा disease-treatment claims वापरण्यापूर्वी कायदेशीर compliance तपासणे आवश्यक आहे.

The Exact Legal Text:

Subject to the provisions of this Act, no person shall take part in the publication of any advertisement referring to any drug in terms which suggests or are calculated to lead the use of that drug for, -

- (a) the procurement of miscarriage in women or prevention of conception in women; or
- (b) the maintenance or improvement of the capacity of human beings for sexual pleasure;
- (c) the correction of menstrual disorders in women; or
- (d) the diagnosis, cure, mitigation, treatment or prevention of any disease, disorder or condition specified in the schedule, or any disease, disorder or condition by whatever name called which may be specified in the rules made under this Act.

Keywords/Triggers:

prohibited drug advertisement, disease treatment claim, miscarriage claim, sexual pleasure claim, menstrual disorder, scheduled disease, Ayurvedic advertising compliance, DMROA Section 3

Title: Prohibition of Misleading Advertisements Relating to Drugs

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 4

Plain English Summary:

Drug च्या advertisement मध्ये product च्या खऱ्या character बदल चुकीची impression देणे, false claim करणे किंवा कोणत्याही महत्वाच्या बाबतीत misleading information देणे प्रतिबंधित आहे. त्यामुळे Ayurvedic product साठी “100% guaranteed cure”, “no side effects” किंवा scientific evidence नसलेले claims वापरणे कायदेशीर धोका निर्माण करू शकते.

The Exact Legal Text:

Subject to the provisions of this Act, no person shall take part in the publication of any advertisement relating to a drug if the advertisement contains any matter which—

- (a) directly or indirectly gives a false impression about the true character of the drug; or
- (b) makes a false claim for the drug; or
- (c) is false or misleading in any material particular.

Keywords/Triggers:

misleading advertisement, false drug claim, false impression, Ayurvedic product claim, guaranteed cure, misleading label, advertising compliance, DMROA Section 4